22nd Oct 2022 – 2024

भारतीय गैर न्यायिक

एक सौ रुपये Rs. 100

रु. 100 ONE HUNDRED RUPEES

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INDIA NON JUDICIAL

महाराष्ट्र MAHARASHTRA ◑ 2022 ◑ 20AA 673962

प्रदानकर्ता कोषागारकडे सादर करावयाचे :- अमरित्य

प्रतिज्ञापत्रासाठीचे कारण :-

मुद्रांक विक्रेता घेणाऱ्याचे नांव CHRIST COLLEGE - PUNE

व राहिवासी पत्ता 26/4A, Sainikwadi, Vadgaonsheri, Pune- 411014

मुद्रांक विक्री दाखली नोंद दि. B. 201901 72

मुद्रांक विक्रेता परवानाधारी सही

प्रदानाधारक मुद्रांक खरेदी न करताना

तसेच

Christ College-Pune

CHRIST COLLEGE - PUNE,
Maharashtra, India

कोषागार अधिकारी पुणे

19 SEP 2022

प्रथम मुद्रांक विक्रीक कोषागार पुणे करिता

ST. FRANCIS DE SALES COLLEGE
Maharashtra, India

Principal / Director
Carmel Vidya Bhavan Trust's
Christ College
Pune- 411014.

Christ College-Pune Enlighten to Excel

MEMORANDUM OF UNDERSTANDING (MoU)

Between

CHRIST COLLEGE - PUNE, Maharashtra, India

And

ST. FRANCIS DE SALES COLLEGE NAGPUR

Maharashtra, India

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This Agreement is made on the 22nd day of October 2022 between CHRIST COLLEGE - PUNE, Maharashtra, India represented by its Principal, Dr (Fr) Arun Antony Chully CMI as **the first party** and ST. FRANCIS DE SALES COLLEGE NAGPUR represented by Dr.K.T.Thomas, Principal, as **the second party.**

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Principal
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PURPOSE

Whereas

a) CHRIST COLLEGE - PUNE

b) CHRIST COLLEGE - PUNE is desirous to associate with ST. FRANCIS DE SALES COLLEGE NAGPUR on various areas as discussed in the Purview of this MoU, which will be mutually beneficial to both organizations.

Whereas

c) About ST. FRANCIS DE SALES COLLEGE NAGPUR

d) ST. FRANCIS DE SALES COLLEGE NAGPUR is desirous to associate with CHRIST COLLEGE - PUNE on various areas as discussed in the Purview of this MoU, which will be mutually beneficial to both organizations.

That, relying on the principle of good faith, by virtue of which they will carry out all the possible actions for their due fulfillment,

And relying also on their common bonds and concerns, they state their interest in strengthening their relationships through academic cooperation, and for this end they are of one accord in entering this MoU.

NOW THEREFORE THIS MEMORANDUM OF UNDERSTANDING WITNESSES AS FOLLOWS

1. OBJECTIVE:

e) The parties agree that the objective of the present MoU is to establish a cooperation program in order to collaborate towards the formation of students, academics and researchers for the promotion and development of their respective areas of interest.

2. METHOD FOR ACHIEVING THE OBJECTIVES:

f) In order to achieve the aforementioned objectives, both parties, in mutual agreement, shall develop cooperation programs and projects that will specify the commitments each of them is to make for the performance of said programs.

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3. AREAS OF CO-OPERATION:

a) Whereas, CHRIST COLLEGE – PUNE and ST. FRANCIS DE SALES COLLEGE NAGPUR recognize that the academic collaboration would be of mutual benefit and would provide strengths in research and education and their mutual interest in engaging themselves in academic cooperation. As per the purpose of the said agreement, the two parties shall:

i. *Research Collaborations:* Faculty / Researchers / Students of CHRIST COLLEGE - PUNE and ST. FRANCIS DE SALES COLLEGE NAGPUR can collaborate in future research projects that either involve working cooperatively with partner institutions and / or cover a research topic with an international component. Activities include, but are not limited to, efforts toward developing proposals for collaborative research, co-authoring publication, conducting joint research projects, or establishing joint research centers etc.

ii. *Faculty Exchange with Partner Universities:* Faculty members of CHRIST COLLEGE - PUNE and ST. FRANCIS DE SALES COLLEGE NAGPUR can travel between to participate in activities that can enhance their international / national experience and knowledge and also to foster relations between the parties. Activities include, but are not limited to, delivering lectures, teaching a course, taking a sabbatical, acquiring skills for institutional governance and developing collaborative research etc.

iii. *Student Exchange with Partner Universities:* Students can be given an opportunity to travel among parties to participate in activities / events that will enhance their international / intercultural experience and knowledge.

iv. *Promotion of integrated studies for related studies:* The parties can look at integrating an international / intercultural dimension into their teaching, research, and service functions of the university which would enable the students understanding on a global perspective.

v. Cooperate in the exchange of information relating to their activities in teaching and research in fields of mutual interests; sharing best practices adopted by each parties; sharing of e-content between the parties; access

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to library and repository services, if possible.

vi. Conduct cultural projects, study tours, as mutually agreed in writing between the parties prior to commencement of this activity.

vii. Common student projects and events related to either academic or co-curricular aspects.

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4. FUNDING:

h) Expenses for airfare, transportation, room and board and personal expenses of exchange students, teachers or officers shall be covered by each individual. Students will pay their registration, courses or professional practices at their home institution, so that they can be recognized afterwards.

i) Students, interns and officers shall be responsible for requesting and obtaining lodging by inquiring with the institution, which shall provide every help necessary for them to obtain safe, convenient lodging arrangements.

j) Financial expenses for (term visits) internships of professors and researchers, which will be arranged at the parties' request, as well as travel expenses, shall be covered by the requesting institution. No fees will be paid, as the assumption is that the professors / researchers remain in their positions at their home institution, which will continue to pay their salaries.

k) Students, professors and officers must acquire a medical insurance policy. The institutions may offer them advice in seeking appropriate insurance.

5. NO EMPLOYMENT RELATIONSHIP:

l) The parties agree that this Agreement shall not be construed in any manner as establishing any kind of partnership or bond of a labor nature between them. Thus, in all activities stemming from the present MoU and from subsequent specific action plans, the parties are in the understanding that, in all cases, employment relationships shall remain in force between the employing institution and its respective personnel.

6. CREDITS / ACCREDITATION:

m) Credits and grades shall be awarded in accordance with the academic achievement policies in force at the Institution. However, the home Institution reserves the right to accept or reject any accreditation leading to an academic degree.

n) The Institution shall issue a certification recognizing the grades obtained, as well as the hours invested or projects/papers completed by the students.

It is noted that 6 (m) and 6 (n) are subject to the laws of the land and rules and regulations promulgated by the affiliating university, if any regarding the academic administration as

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well as transfer of academic credits.

7. RIGHTS AND DUTIES:

o) The host Institution is committed to counseling and supporting exchange students through advice on academic and administrative procedures, as well as to foster their integration, inviting and encouraging guest students to become involved in student life.

p) The institutions shall act as facilitators, but they will have no obligation whatsoever in terms of the actions, behaviors or financial aspects of the students / participants involved in the exchange.

q) The students / participants shall enjoy the same rights and privileges as regular students / faculty, and shall observe the norms and rules of the Host institution and the host state. Any violation of the laws of the receiving state and / or the rules of the Host Institution by an exchange participant shall be grounds for the immediate termination of the privileges in the context of this Agreement.

r) The host institution agrees to assist to provide boarding, lodging and necessities and to provide work space, library and laboratory facilities as appropriate.

8. **AUTONOMY:**

s) This agreement is a statement of intentions and does not involve, in any instance whatsoever, any financial obligations between the subscribing institutions.

9. **TERM:**

t) This MOU shall be effective for a period of five (5) years from the date of execution of this agreement, and shall be automatically renewed thereafter for another five (5) years unless a written notice to terminate or amend this agreement is given to the other party six (6) months in advance.

u) It is expressly agreed that neither party shall be liable for damages that they might cause each other as a result of a **forceful suspension** of a collaboration program. Causes for forceful suspension must be explicitly set forth in the action plans.

10. **CONFLICT RESOLUTION:**

v) Any dispute resulting from the interpretation or application of this Agreement shall be

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settled through direct negotiation and **common agreement** by the persons delegated to such end by each university / Institution. Either party may propose to the other a modification of the Agreement at any time in writing.

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11. ACTION PLANS:

w) Every work program or specific activity that is agreed upon between both institutions shall be defined through an action plan, which shall be under the responsibility of two individuals, appointed respectively by each Institution, and which shall define the following aspects:

i. Foundations or considerations that warrant the plan for inter-institutional collaboration;
ii. Objective of the action plan for inter-institutional collaboration;
iii. General conditions of the plan;
iv. Academic conditions of the plan;
v. Administrative and organizational conditions of the plan;
vi. Duration of the protocol;
vii. Intellectual property;
viii. Differences between the parties;
ix. Development of the collaboration project;
x. Project and/or program to be carried out;
xi. Financial budget;
xii. Reference to the subject of medical insurance and information.

12. CONFIDENTIALITY:

x) Each of the parties accepts and declares that every information from the other party is of a confidential nature, is the exclusive property of the latter and has been or will be disclosed to the former solely with the purpose of enabling the full accomplishment of the present Agreement. For this reason, every piece of information provided by one party to the other before signing this Agreement and/or during its performance must be kept confidential and therefore may not be disclosed to any third parties.

13. AMENDMENTS:

y) The parties may amend or amplify this Agreement through agreements in writing to that

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effect. Said amendments or additions will be binding on the signatories as of the date of their signature. The parties may not assign, in whole or in part, the performance of the present MoU to any third party, except through prior and express authorization in writing by both of them.

And since both parties are in agreement regarding the content of the present document, and as a token of conformity, we sign it in two counterparts, both of which will be considered originals.

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Dr.K.T.Thomas
Principal
ST. FRANCIS DE SALES COLLEGE
NAGPUR
Maharashtra, India

Witnesses

Representative of the Xavier Board (National/Board Member)
Name of the Representative
Designation
Institution Name

Representative of XB Region (Region Name)
Name of the Representative Gladys D'Souza
Designation Associate Professor
Institution Name Carmel College, Nuvem - Goa.

Prof.Biju Sebastian
Asst. Professor
CHRIST COLLEGE - PUNE

Dr.Advait Bhagade
Coordinator
ST. FRANCIS DE SALESCOLLEGE NAGPUR

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